

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:
Date Filed:

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ERIC RHODES, ELIO TOLEDO
and KAVON JONES-LYTCH,

Plaintiffs,

Plaintiffs designate
KINGS COUNTY

-against-

The basis of the venue is:
Place where cause of action arose

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
SERGIOMO M. ANG (Tax #: 967753; Shield # 17175),
POLICE OFFICER KHALED A. MOHAMED
(Tax #: 969993; Shield # 22303) and POLICE OFFICERS
JOHN DOE 1-10¹,

Each plaintiff resides at:
Kings County, New York

Defendants.

-----X
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' Attorney(s) within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
August 7, 2024

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

/s/ Wale Mosaku

BY: WALE MOSAKU
Attorney for Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

¹ The names, shield numbers and tax numbers of these officers are not presently known to the plaintiff.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No:

ERIC RHODES, ELIO TOLEDO
and KAVON JONES-LYTCH,

Plaintiffs,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
SERGIOMO M. ANG (Tax #: 967753; Shield # 17175),
POLICE OFFICER KHALED A. MOHAMED
(Tax #: 969993; Shield # 22303) and POLICE OFFICERS
JOHN DOE 1-10,

Defendants.

-----X

ERIC RHODES (hereinafter "plaintiff Rhodes"), ELIO TOLEDO (hereinafter "plaintiff Toledo")
and KAVON JONES-LYTCH (hereinafter "plaintiff Jones-Lytch") by their attorney(s) THE
LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendants THE CITY OF
NEW YORK (hereinafter "City"), POLICE OFFICER SERGIOMO M. ANG (Tax #: 967753;
Shield # 17175) (hereinafter "defendant Ang"), POLICE OFFICER KHALED A. MOHAMED
(Tax #: 969993; Shield # 22303) (hereinafter "defendant Mohamed") and POLICE OFFICERS
JOHN DOE 1-10, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law that sounds in the intentional tort(s) of unlawful search and seizure, false arrest/imprisonment, malicious prosecution, assault/battery and/or excessive force.
2. This is also an action at law to redress the deprivation of rights secured to the plaintiffs under the laws and statutes of the City of New York, specifically §8-802 of the New York City Administrative Code.

THE PARTIES

3. The plaintiff Eric Rhodes is an African American male of full age, and a resident of the Borough of Kings, City and State of New York.
4. The plaintiff Elio Toledo is a Hispanic American male of full age, and a resident of the Borough of Kings, City and State of New York.

5. The plaintiff Kavon Jones-Lytch is an African American male of full age, and a resident of the Borough of Kings, City and State of New York.
6. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant police officers, through its Police Department, namely the New York City Police Department ("NYPD"), and the actions of the defendant police officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
7. At the time of the incident complained of herein, each of the above-referenced defendant police officers was in the course of his duties. As such, the City is responsible for the above-referenced defendant police officers' actions, based upon the theory of *respondeat superior*.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

8. All conditions precedent to filing of this action have been complied with; on November 15, 2023, within ninety days after the claims alleged in this complaint arose, a written notice of claim(s), sworn to by each plaintiff and/or his representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts.
9. Plaintiff Eric Rhodes' claim was assigned Claim No. 2023PI038317.
10. Plaintiff Elio Toledo's claim was assigned Claim No. 2023PI038319.
11. Plaintiff Kavon Jones-Lytch's claim was assigned Claim No. 2023PI038323.
12. At least thirty days have elapsed since the service of the above-mentioned notice of claim(s), and adjustment or payment of the claims have been neglected or refused.
13. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTUAL ALLEGATIONS

14. On or about October 1, 2023, at approximately 03:30 p.m., on the roadway in front of the premises described as 237 Nassau Street, in Brooklyn, New York ("subject location") each plaintiff was unlawfully and wrongfully arrested by the defendant police officers Ang and Mohamed.
15. Prior to each plaintiff's arrest, the plaintiff Eric Rhodes was driving his Tesla vehicle. At that time the plaintiffs Elio Toledo (front seat passenger) and Kavon Jones-Lytch (back seat passenger) were passengers in the plaintiff Eric Rhodes vehicle.
16. As the plaintiff Eric Rhodes was operating his vehicle, he was pulled over by the defendant police officers Ang and Mohamed, who at the time were in a marked NYPD vehicle.
17. After the plaintiff Eric Rhodes had pulled over his vehicle, the defendant police officers Ang and Mohamed informed the plaintiff Eric Rhodes that the reason they had pulled him over was because he had made an illegal turn.
18. In fact that was untrue, as the plaintiff Eric Rhodes had not committed any traffic infractions before he was pulled over by the defendant police officers Ang and Mohamed.
19. The defendant police officers Ang and Mohamed then asked the plaintiff Eric Rhodes to provide them with his driver's license and the vehicle registration, and after the plaintiff Eric Rhodes had complied with their instruction, the defendant police officers Ang and Mohamed went back to their vehicle.
20. Approximately 10-15 minutes later, the defendant police officers Ang and Mohamed returned to the plaintiff Eric Rhodes' vehicle, and one of them stated in sum and substance to the plaintiff Eric Rhodes "*I see you cleared your ticket*"².
21. The defendant police officers Ang and Mohamed then instructed the plaintiff Eric Rhodes to roll down his rear window. When he did so, they observed

² The defendant police officers Ang and Mohamed had arrested the plaintiff Eric Rhodes on September 19, 2023, and charged him to Court for, *inter alia*, driving while his driver's license was suspended.

the plaintiff Kavon Jones-Lytch, and asked him why he was not wearing his seat belt.

22. The plaintiff Kavon Jones-Lytch responded that it had been approximately 15 minutes since the vehicle was pulled over, and that he had taken off his seat belt in order to eat some food he had with him at the time.
23. The defendant police officers Ang and Mohamed, without any reasonable suspicion that the plaintiff Kavon Jones-Lytch had committed any crime and/or offense, then asked the plaintiff Kavon Jones-Lytch for his identification, and when same was provided to said defendant police officers, they alleged that the plaintiff Kavon Jones-Lytch had a warrant for his arrest, which was untrue.
24. The defendant police officers Ang and Mohamed then placed the plaintiff Kavon Jones-Lytch under arrest on the basis of a purported warrant.
25. Subsequently, the defendant police officers Ang and Mohamed, without permission or a reasonable basis, forcibly conducted an unlawful search of the plaintiff Eric Rhodes vehicle, following which they arrested the plaintiffs Eric Rhodes and Elio Toledo.
26. Following the arrests of the plaintiffs as described above, they were transported to the 84th police precinct, where they were each processed, or otherwise photographed and fingerprinted.
27. However, while the defendant police officers Ang and Mohamed were conducting a body search of the plaintiff Elio Toledo, one of them grabbed the genital area of the plaintiff Elio Toledo, and when he protested, was then brutally beaten and assaulted by the defendant police officers Ang and Mohamed.
28. When the plaintiff Eric Rhodes, who was a witness to said assault protested the treatment of the plaintiff Elio Toledo by the defendant officers, he was taken to another room in the back area of the precinct and also brutally beaten and assaulted by the defendant police officers.

29. At approximately 09:00 pm, the plaintiff Kavon Jones-Lytch was released from the precinct after being issued with a Desk Appearance Ticket (DAT), which requires him to report to Kings County Criminal Court on 10/21/2023.
30. The plaintiff Kavon Jones-Lytch was charged with Criminal Possession of a Controlled Substance in the 7th Degree [PL 220.03].
31. In fact, the plaintiff Kavon Jones-Lytch was not in possession of any illegal items at the time of his arrest.
32. The criminal action against the plaintiff Kavon Jones-Lytch was dismissed on 01/22/2024, and terminated in his favor. The Kings County Criminal Court docket number was CR-700509-23CK.
33. The plaintiffs Eric Rhodes and Elio Toledo were transported to “Central Booking”, situated within the Kings County Criminal Courthouse located at 120 Schermerhorn Street, Brooklyn, New York 11201.
34. Upon arrival at “Central Booking”, the plaintiffs Eric Rhodes and Elio Toledo were processed again, and then placed in a cell to await arraignment.
35. At approximately 03:00 p.m. on October 2, 2023, the plaintiff Eric Rhodes was arraigned before a criminal court judge on the following charges:
 - i. Criminal Possession of a Controlled Substance in the 7th Degree [PL 220.03]; and
 - ii. Failure to Comply with a Traffic Signal [VTL 1110].
36. Prior to, and at the time of his arrest, the plaintiff Eric Rhodes had not committed any traffic infraction as alleged, nor was he in possession of any illegal items.
37. The plaintiff Eric Rhodes pleaded “not guilty” and was released upon his own recognizance.
38. The criminal action against the plaintiff Eric Rhodes is still pending.
39. At approximately 06:00 p.m. on October 2, 2023, the plaintiff Elio Toledo was arraigned before a criminal court judge on the following charges:
 - i. Criminal Possession of a Controlled Substance in the 3rd Degree [PL 220.16(1)];
 - ii. Assault in the 2nd Degree [PL 120.05(3)];
 - iii. Assault in the 3rd Degree [PL 120.00(1)];

- iv. Obstructing Governmental Administration in the 2nd Degree [PL 195.05];
- v. Criminal Possession of a Controlled Substance in the 7th Degree [PL 220.03];
- vi. Attempted Assault in the 3rd Degree [PL 110/120.00(1)];
- vii. Disorderly Conduct [PL 240.20(1)]; and
- viii. Harassment in the 2nd Degree [PL 240.26(1)].

40. Prior to, or at the time of his arrest, the plaintiff Elio Toledo had not committed any of the crimes/offenses alleged, nor was he in possession of any illegal items.
41. The plaintiff Elio Toledo pleaded “not guilty” and was released upon his own recognizance.
42. The criminal action against the plaintiff Elio Toledo was dismissed on 01/22/2024, and terminated in his favor. The Kings County Criminal Court docket number was CR-036101-23KN.
43. The defendant officers were employed by The City of New York, and specifically, were in the course of their duties when they committed the above-referenced wrongful and intentional acts against each plaintiff. As such, the City of New York is responsible for said defendant officers’ actions, based upon the theory of *respondeat superior*.

CAUSE(S) OF ACTION BY EACH PLAINTIFF AGAINST THE DEFENDANTS:
UNLAWFUL SEARCH, FALSE ARREST/FALSE IMPRISONMENT, ASSAULT/BATTERY,
EXCESSIVE FORCE AND FAILURE TO INTERVENE UNDER NEW YORK STATE/CITY
LAW

44. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 43 of this complaint as though fully set forth herein.
45. The above-described unlawful search(es) of the plaintiffs and their property, and the unlawful arrest(s), detention(s), imprisonment(s) and assault(s) of the plaintiffs by the defendant officers were without just or probable cause, and without any warrant or legal process directing or authorizing said unlawful arrest(s), detention(s), imprisonment(s) and assault(s).

46. As a result of the unlawful arrest(s), detention(s), imprisonment(s) and assault(s) of the plaintiffs by the defendant officers, each plaintiff has been caused to suffer physical injuries, humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
47. The defendants are further liable to each plaintiff for the above-referenced unlawful arrest(s), detention(s), imprisonment(s) and assault(s) of the plaintiffs by the defendant officers, and failure to intervene, pursuant to §8-802 and §8-803 of the New York City Administrative Code.
48. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for their unlawful acts towards each plaintiff as described above.
49. Consequently, each plaintiff has been damaged and hereby demands compensatory damages in an amount to be proven at trial against each defendant, including but not limited to the defendant City of New York.

CAUSE OF ACTION ON BEHALF OF PLAINTIFFS ELIO TOLEDO AND
KAVON LYTCH-JONES: MALICIOUS PROSECUTION UNDER NEW YORK
STATE LAW

50. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 49 of this complaint as though fully set forth herein.
51. The commencement and continued prosecution of the criminal judicial proceeding(s) against plaintiffs Elio Toledo and Kavon Jones-Lytch, including said plaintiffs' arrest(s), imprisonment(s), and the charges against said plaintiffs, were committed by or at the insistence of the defendant police officers, were without probable cause or legal justification, and with malice.
52. That the defendant police officers were directly involved in the initiation of criminal proceedings against plaintiffs Elio Toledo and Kavon Jones-Lytch.

53. That the defendant police officers lacked probable cause to initiate criminal proceedings against plaintiffs Elio Toledo and Kavon Jones-Lytch.
54. That the defendant police officers acted with malice in initiating criminal proceedings against plaintiffs Elio Toledo and Kavon Jones-Lytch.
55. That the defendant police officers were directly involved in the continuation of criminal proceedings against the plaintiffs Elio Toledo and Kavon Jones-Lytch.
56. That the defendant police officers lacked probable cause in continuing criminal proceedings against the plaintiffs Elio Toledo and Kavon Jones-Lytch.
57. That the defendant police officers acted with malice in continuing criminal proceedings against the plaintiffs Elio Toledo and Kavon Jones-Lytch.
58. That the defendant police officers misrepresented and falsified evidence throughout all phases of the criminal proceedings.
59. That the defendant police officers misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's ("KCDA") office.
60. That the defendant police officers withheld exculpatory evidence from the prosecutors in the KCDA's office.
61. That the defendant police officers did not make a complete statement of facts to the prosecutors in the KCDA's office.
62. The criminal judicial proceedings initiated against plaintiffs Elio Toledo and Kavon Jones-Lytch were dismissed as set forth above, and terminated in each of the plaintiffs Elio Toledo and Kavon Jones-Lytch's favor.
63. The arrest, imprisonment and prosecution of the plaintiffs Elio Toledo and Kavon Jones-Lytch by the defendant police officers was/were malicious and unlawful, because the plaintiffs Elio Toledo and Kavon Jones-Lytch had committed no crime and there was no probable cause to believe that the plaintiffs Elio Toledo and Kavon Jones-Lytch had committed any crimes.
64. The defendant police officers actions were intentional, unwarranted and in violation of the law.

65. The defendant police officers had full knowledge that the charges made before the Court against the plaintiffs Elio Toledo and Kavon Jones-Lytch were false and untrue.
66. As a consequence of the malicious prosecution by the defendant police officers, the plaintiffs Elio Toledo and Kavon Jones-Lytch suffered significant loss of liberty, humiliation, mental anguish, depression and the plaintiffs Elio Toledo and Kavon Jones-Lytch's constitutional rights were violated.
67. The plaintiffs Elio Toledo and Kavon Jones-Lytch each hereby demand compensatory damages, in an amount to be determined at trial, against each defendant.
68. The defendant police officers were at all material times acting within the scope of their employment, and as such, the City is vicariously liable for the defendant police officers' acts as described above.

WHEREFORE, each plaintiff prays for judgment against each defendant, jointly and severally, as follows: for compensatory damages in an amount to be proven at trial; for costs and expenses of suit herein, including each plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
August 7, 2024

LAW OFFICES OF WALE MOSAKU, P.C.

By: /s/ Wale Mosaku

Wale Mosaku
Attorney for the Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:
ERIC RHODES, ELIO TOLEDO
and KAVON JONES-LYTCH,

Plaintiffs,

-against-

ATTORNEY CERTIFICATION
PURSUANT TO 22 NYCRR Part
130-1.1(c)

THE CITY OF NEW YORK, POLICE OFFICER
SERGIOMO M. ANG (Tax #: 967753; Shield # 17175),
POLICE OFFICER KHALED A. MOHAMED
(Tax #: 969993; Shield # 22303) and POLICE OFFICERS
JOHN DOE 1-10,

Defendants.

-----X

The undersigned attorney does hereby certify:

That I am the attorney for the plaintiffs and duly admitted to practice law before the Courts of the State of New York. I do hereby provide this signed certification pursuant to 22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the Court in this action are not frivolous.

Dated: Brooklyn, New York
August 7, 2024

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

/s/ Wale Mosaku

BY: WALE MOSAKU
Attorney for the Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No.

**ERIC RHODES, ELIO TOLEDO
and KAVON JONES-LYTCH,**

Plaintiff(s),

-against-

**THE CITY OF NEW YORK, POLICE OFFICER
SERGIOMO M. ANG (Tax #: 967753; Shield # 17175),
POLICE OFFICER KHALED A. MOHAMED
(Tax #: 969993; Shield # 22303) and POLICE OFFICERS
JOHN DOE 1-10,**

Defendant(s).

SUMMONS AND COMPLAINT

**LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994**

To:

**Service of a copy of the within
is hereby admitted.**

Dated:..... 202_

Attorney(s) for Defendant(s)
